

HEADNOTE

“1. If an appeal is lodged against an order rejecting a preliminary objection, the Court of Appeal may stay the proceedings at first instance on a "reasoned request" by a party (Rule 21.2 RoP). A statement which does not set out the reasons why the first instance proceedings should be stayed does not constitute a reasoned request.

2. The arguments presented by the applicant at the interim conference cannot remedy the lack of reasoning in its written statement. The interim conference may be used to further clarify the reasoning for a stay request. However, also in view of the defendant's right to prepare its defence, it cannot be used to present the grounds for the request for the first time.”

COURT
Court of Appeal Luxembourg

PROCEEDINGS
Action for revocation

PATENT
EP 2 044 709 B1

CONNECTIVITY FAULT
MANAGEMENT (CFM) IN
NETWORKS WITH LINK
AGGREGATION GROUP
CONNECTIONS

KEYWORDS

Appeal

reasoned request to stay proceedings pen...

Rule 21 Appeal against decision or order on a Preliminary objection

SUMMARY

The Court of Appeal in Luxembourg ruled on an action for revocation. The patent at issue relates to Connectivity Fault Management (CFM) in networks with Link Aggregation Group connections. According to the headnotes of the decision, when a party appeals an order rejecting a preliminary objection, it may request that proceedings at first instance be stayed, but only if that request includes clear reasoning explaining why the stay is necessary. When an applicant fails to provide such reasoning in its written statement, it cannot later remedy this deficiency by presenting arguments for the first time at an interim conference, since the defendant must have a fair opportunity to prepare its defence based on properly documented grounds.